

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X

TIFFANY JORDAN, MITCHELL MCKENZIE

SUMMONS

Plaintiff,

INDEX NO.

-against-

CITY OF NEW YORK; Police Officer Angel Gonzalez,
Police Officer Richard DiDonato and JOHN and JANE DOE one
through ten, individually and in their official capacities the
names John and Jane Doe being fictitious, as the
true names are presently unknown),
Defendants.

-----X

YOU ARE HEREBY SUMMONED to answer the complaint in this
action and to serve a copy of your answer, or, if the complaint
is not served with the summons, to serve a notice of appearance,
on the Plaintiff's attorney within twenty (20) days after the
service of this summons, exclusive of the day of service. If the
summons is not personally served on you, or if the summons is
served on you outside the State of New York, then your answer or
notice of appearance must be served with thirty (30) days. In
case of your failure to appear or answer, judgment will be taken
against you by default, for the relief demanded in the
complaint.

The basis of venue is the location of the incident alleged
in the complaint: 2860 8th Avenue, New York, NY.

New York, New York
December 27, 2019

Attorney for Plaintiff



ROBERT J. MARINELLI, ESQ.
305 Broadway, Suite 1001
New York, N.Y. 10007
212-822-1427

SERVICE LIST

City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007

Angel Gonzalez

Richard DiDonato

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
TIFFANY JORDAN, MITCHELL MCKENZIE

Plaintiffs

COMPLAINT

INDEX NO.

-against-

CITY OF NEW YORK; Police Officer Angel Gonzalez,
Police Officer Richard DiDonato and JOHN and JANE DOE one
through ten, individually and in their official capacities the
names John and Jane Doe being fictitious, as the
true names are presently unknown),
-----X

PLEASE TAKE NOTICE that plaintiffs, by his attorney, ROBERT J.
MARINELLI, alleges the following, upon information and belief:

Preliminary statement

1. This is an action for damages arising from the imprisonment and prosecutions of plaintiffs Tiffany Jordan ("plaintiffs"). Plaintiffs were arrested and subjected to various criminal charges on December 31, 2016, without probable cause and in violation of thier rights under federal law.
2. On December 31, 2016, POLICE OFFICERS JOHN DOE 1 - 10 ("Does"), acting within the scope of their employment and under the authority of the CITY OF NEW YORK ("CITY") and the NEW YORK CITY POLICE DEPARTMENT ("NYPD") falsely arrested, failed to intervene, and made false allegations to the New York County District Attorney's Office with respect to plaintiffs.

4. Plaintiffs seeks compensatory and punitive damages, attorneys' fees and costs with respect to the claims arising under federal law, and such other and further relief as the court deems just and proper.

JURISDICTION AND VENUE

5. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the Constitution of the United States.

6. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331, 1343 and 1367(a).

7. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

8. The cause of action arose within New York County, within the State of New York.

PARTIES

9. Plaintiffs are a resident of New York County.

10. At all times hereinafter mentioned, Plaintiffs are natural people residing in Brooklyn, N.Y.

11. At all times hereinafter mentioned, defendants Angel Gonzalez ("Gonzalez"), Richard DiDonato ("DiDonato") and John Does one through ten were police officers, employees and agents of the CITY, acting within the scope of his employment and under color of state law.

12. Defendants DOES are sued in their official and individual

capacities.

13. At all times hereinafter mentioned, defendant NYPD was an agency of the CITY.

14. At all times hereinafter mentioned, defendant CITY was a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

STATEMENT OF FACTS

15. On December 31, 2016 at approximately 9:27 p.m. in the vicinity of 2680 8th Avenue, New York, N.Y. plaintiffs were lawfully passengers in a car, Yeshawn Daniels was the driver, when defendants, including Gonzalez and DiDonato, ordered the car's driver to pull over.

16. Defendants, including Gonzalez and DiDonato, illegally searched the car.

17. Under the driver's seat defendants, including Gonzalez and DiDonato, claim to have found an "air rifle".

18. The driver informed defendants that he was the owner of the air rifle and that air rifles are not illegal. Defendants acknowledged that the recovered objects were merely air rifles.

19. Plaintiffs were handcuffed tightly and placed in a police van. Plaintiffs, repeatedly requested that the cuffs be loosened, but defendants refused. As a result plaintiffs suffered contusions and swelling to her wrists, requiring a visit to the Mount Sinai St.

Lukes Emergency Room the day after she was released.

20. Plaintiffs were taken to the precinct and placed in a cell.

11. At no point did anyone observe plaintiffs doing anything illegal.

22. After about twenty-four hours in custody plaintiffs were released. Ultimately all charges against plaintiffs were dismissed.

23. Pursuant to Penal Law Section 265.15(3) there is no automobile exception for the possession of an air gun.

24. Plaintiffs suffered damage as a result of defendants' actions. Plaintiffs were deprived of his liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and damage to his reputation.

FIRST CLAIM

False Arrest

25. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

26. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiffs without probable cause.

27. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages herein alleged.

SECOND CLAIM

EXCESSIVE FORCE

28. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

29. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on plaintiffs.

30. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CLAIM

Failure To Intervene

31. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

32. Those defendants who were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

33. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth and Fourteenth Amendments.

34. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CLAIM

Municipal Liability

35. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

36. This is not an isolated incident. The City of New York (the "City"), through policies, practices and customs, directly caused the constitutional violations suffered by plaintiffs.

37. The City, through its police department, has had and still has hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

38. The City, through its police department, has a *de facto* quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

39. The City, at all relevant times, was aware that these individual defendants routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior

40. The City, at all relevant times, was aware that these individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct. These policies, practices, and customs were the moving force behind plaintiffs's injuries.

Prayer for Relief

Wherefore, plaintiffs demands judgment against defendants as follows:

- a) Compensatory damages;
- b) Punitive damages;
- c) Attorneys' fees and costs pursuant to 42 U.S.C. §1983;

- d) Interest, costs and disbursements;
- e) Other and further relief as the court deems proper/

A jury trial is hereby demanded.



ROBERT J. MARINELLI, ESQ.
305 Broadway, Suite 1001
New York, N.Y. 10007
212-822-1427

New York, N.Y.
December 27, 2019